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18-04-2022

NETHAJI R

Employment Contract

Dear NETHAJI,

We refer to the personal interview you had with us and the offer letter issued to you on **04-04-2022.** Based upon the acceptance of the same by you, we wish to formalize our Offer of Appointment at **Vivriti Capital Private Limited** (**"Company"**) with you. This will be with effect from **18-04-2022** on the terms and conditions mentioned below. This Appointment Letter is highly confidential between you and the Company and any disclosure of the same to any third person will lead to disciplinary action by revocation of this letter of appointment or termination if found thereafter.

1. Selection criteria

1.1 Your selection has been made on the basis of information and representations provided by you which the Company assumes to be true, correct, and genuine.

1.2 We also reserve the right to take references from your ex-employers and from any other persons whose references have been mentioned in your resume and application form.

1.3 If at all, at any time in future, it is found that you have concealed any information or misrepresented the facts, the appointment shall be terminated by the company with immediate effect.

2. Position in company

2.1 You will be employed on a permanent full-time basis in the **Technology** team as **Associate** based at **Chennai, Tamil Nadu, India** in accordance with the rules of the Company for the time being in force and as amended from time to time.

3. Commencement of work

3.1 Your services to the Company will commence from **18-04-2022** (commencement date)

3.2 Should your performance or conduct not match up to company expectations in your first 180 days in the company, the management reserves the right to terminate your services with the organization by providing you with a written notice of 30 (Thirty) days.

4. Remuneration

4.1 The details are to be referred from the Offer letter dated **04-04-2022**

4.2 Payment mode: The remuneration will be deposited in your bank account which we have a tie up with. Incase you do not hold an account with the designated bank, the company will help you open a new account.

4.3 Reimbursement: The Company will reimburse you for any reasonable expenses properly incurred in carrying out

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the duties at actuals in accordance with this Appointment, subject to production of satisfactory evidence.

5. Duties

5.1 You are required to perform the duties as advised to you at the time of joining. The Key Responsibility Area (KRA) for performing your duties will be set by your Reporting Manager and duties will be carried out accordingly.

5.2 These duties may change or be diversified by the Company depending on your skills and competencies.

5.3 In addition to performing your duty, you must

- carry out all lawful and reasonable instructions given to you by the Company in relation to your employment.
- serve the Company faithfully, efficiently, and diligently and exercise all due care and skill in the performance of your duties.
- refrain from acting or giving the appearance of acting contrary to the interests of the Company.
- not solicit or attempt to persuade any clients of the Company to use the services of any other business.
- keep confidential all know-how and trade secrets you acquire during and after your employment with the Company, including techniques, product information, client lists and any other information which is confidential to the Company, and
- carry out any other duties reasonably required by the Company to the best of your skills and abilities and adhere to the Company's policies.

6. Responsibilities

6.1 You should keep the Company informed about any change in your personal, professional information and other such relevant information. The company will have the right to share necessary and relevant information to third parties and as required by law.

7. Hours of Work

7.1 You will be required to work for reasonable hours as required by your role.

Your hours of attendance shall be regulated to suit the duties entrusted to you from time to time as required by the management of company.

You will be required to work generally for nine working hours a day i.e., 09:30 to 18:30 and follow a 5 or a 6 day work schedule depending on the treatment of Saturday in a particular month.

7.2 Your remuneration is compensated to you for all time worked. As such, you will not be entitled to additional payment for additional hours worked.

8. Leave

8.1 You will be entitled to leaves as per the Leave policy of the company.

8.2 The application of leave and you availing it, is subject to leave policy for the time being in force and as amended from time to time.

9. Retirement

9.1 Your employment with the Company will terminate under Clause 15 of this Appointment letter or retirement whichever is earlier. You will retire by the age of 60 i.e., on the last day of the month of your 60th Birthday.

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10. Policies and Procedures

10.1 The Company, in order to comply with its legal obligations and to keep up with best practices, may from time to time introduce policies and procedures.

10.2 You agree to read, become familiar and adhere with such policies and procedures and comply with them and encourage others to do likewise.

10.3 The facilities and amenities granted to you by these policies and procedures to perform your duties in excess of the statutory requirements do not form part of the conditions of service and subject to change at the discretion of the management.

11. Occupational Health and Safety

11.1 You must comply with, and ensure that others also comply with, all Company procedures and policies and all of the Company's reasonable instructions, relating to occupational health and safety in order to protect both your own health and safety and the health and safety of other employees, contractors, the public and any other person having dealings with the Company

11.2 You must not take (or possess) non-prescribed drugs or alcohol while at work. You must inform us, prior to commencing work, if you are under the influence of drugs (prescribed or non-prescribed), alcohol or any other substance likely to affect your ability to work.

12. Intellectual Property

12.1 All intellectual property rights of any nature in any intellectual property developed or created by you using the Company's resources, on the Company's premises or in the course of your employment, whether such intellectual property was created during business hours or not, will vest in the Company upon creation, and you will have no claim or interest of any nature whatsoever in such intellectual property.

12.2 The assignment in above clause is without restriction as to use or territory in perpetuity and effective without any further payment to you, whether by way of royalty or otherwise in consideration for the assignment.

- You must do all things necessary to give effect to this assignment, including executing any further document required by the Company.
- You give consent to the Company for all acts or omissions (whether occurring before or after the date of this Appointment) made in relation to any work created during the course of your employment, which would otherwise be an infringement of your moral rights in the relevant work.
- Nothing contained in this Appointment Letter shall be construed as granting to you any right or license under any of the Company's present or future intellectual property rights such as patent rights or copyrights, or as granting to you any right or license to use for any purpose other than those purposes expressly stated herein any of the Company's information or any other information, materials or results received, discovered, or produced by you in connection with the services performed for the Company.

13. Confidentiality

13.1 During your employment in the Company, you will have access to confidential information.

Here "Confidential Information" means any trade secrets or proprietary information or systems, relating to the operations processes, strategies or dealings of the Company or any of its affiliates or any other information concerning the organisation, business, finances, transactions or affairs of the Company or any of its affiliates which you know, or which a reasonable person ought to know, is confidential. Information ceases to be confidential if and only to the extent it becomes information in the public domain, other than as a result of breach of this Appointment or is required by law to be disclosed or by order of a governmental or statutory authority.

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13.2 During your employment in the Company and following the termination of that employment you agree that you:

- will not disclose to any third party any Confidential Information.
- will not use or attempt to use any Confidential Information in any manner which is not in the proper course of your duties and for the sole benefit of the Company or its Related Bodies Corporate, and
- will use your best endeavours to maintain the secrecy of and prevent the disclosure of any such Confidential Information to third parties.

14. Transferability

14.1 You can be transferred to any of the Company's subsidiaries, establishments, branches, units, work places situated in any part of India. On your transfer, you will be governed by the Company's rules applicable to that establishment.

15. Termination

15.1 The Parties hereby agree that either the Company or you may terminate this employment at any time, without assigning any reasons, by:

(i) one party providing a prior written notice of ninety (90) days' or part thereof to the other party ("Notice Period"); or

(ii) payment/adjustment of an amount equivalent to 90 days of remuneration in lieu thereof.

However, during the course of your employment with the Company, the Parties agree and acknowledge that the employee shall be privy to or may otherwise have access to sensitive and confidential information of the Company, which may include but not be limited to products' related information for existing or conceived products, business plans, information related to existing and planned projects, vendors and partners' related information and other valuable information of the Company or you may be or needed to be engaged in a project that needs to be completed or for the needs of other business reasons/requirements.

Thus, in the event if the employee chooses to terminate his/her employment with the Company, the Company shall have the right to:

(i) refuse acceptance/adjustment of salary in lieu of ninety (90) days salary in lieu of Notice Period; and

(ii) require you to:

(a) continue to serve and discharge his/her responsibilities towards the Company during the entire Notice Period; or

(b) till the expiry of the Notice Period, not perform any official duty or attend office and/or return all assets given by the Company. In such case, it is however clarified that monetary compensation (as per last drawn salary and other benefits, if applicable) for the Notice Period would continue to be given by the Company as per the terms of employment. The employee shall be free to explore his/her next employment opportunities during this Notice Period.

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It is expressly clarified that, upon expiry of the Notice Period, the Company shall have no financial or other responsibility towards the Employee whatsoever.

15.2 Your employment shall stand terminated for with on the happening of the following:

- you are guilty of Serious misconduct of such a nature that it would be unreasonable for the Company to continue your employment during the required period of notice.

For the purpose of this clause/letter, term "Serious misconduct" shall include but not limited to the following:

- willful or deliberate, behaviour by you that is inconsistent with the continuation of the contract of employment.
- conduct that causes imminent, and serious, risk to the health, or safety, of a person or the Company's business.
- you are engaging in theft or fraud or assault.
- you being intoxicated at work; or
- you refusing to carry out a lawful and reasonable instruction.

15.3 Upon termination of this Appointment, for whatever reason, you must return to the Company, as soon as possible and practical (and not later than 7(seven) calendar days), all property in your possession or control that belongs to the Company This property includes but is not limited to Confidential Information, whether in soft copy or hard copy, and (where applicable) computer, mobile phone, and motor vehicle.

16. Restrictive Covenant

16.1 In this clause, "Restrained Business" means any business that is the same as or similar to the business of the Company or could compete with the Company or any part of the Company or any affiliates.

16.2 You shall not, directly, or indirectly, except with the prior written consent of the Company, at any time during, and for a period of 6 months following the termination of this Appointment for any reason:

- engage or hire or attempt to engage or hire any employee of the Company whether wholly or partially for your benefit or for any other person or company.
- persuade or entice or attempt to persuade or entice any employee of the Company to cease employment with the Company; or
- counsel or procure any person or entity to do any of the foregoing.

16.3 You shall not, directly, or indirectly, except with the prior written consent of the Company and its Board, at any time during, and for a period of 6 months following the termination of this Appointment for any reason:

- canvass or solicit business from or interfere in any manner with any client or customer of the Company, with whom you have dealt with or otherwise had contact with in the course of and during your employment, whether personally or by or through any other person; or
- counsel or procure any person or entity to do any of the foregoing; or
- operate, participate in, or promote a Restrained Business; or
- have any kind of interest of be concerned with a Restrained Business; or
- represent yourself as being in any way connected with the Company; or
- use a logo, mark or name substantially the same as or deceptively similar to any that may be or may have previously been in use by the Company; or
- knowingly do anything that may adversely affect the Company or its goodwill.

16.4 You agree that this restrictive covenant applies to you acting:

- either alone or in partnership or association with another person.
- as principal, agent, representative, director, officer, or employee.
- as member, shareholder, debenture holder, note holder or holder of any other security.
- as trustee of or as a consultant or adviser to any person.
- in any other capacity.

16.5 You acknowledge that this Restrictive Covenant is in the circumstances reasonable and necessary to protect the Company's legitimate business interests.

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17. General Provisions

17.1 The validity, interpretation and performance of this Appointment will be governed by the law of India. The Parties submit to the non-exclusive jurisdiction of the Courts of India in respect of any dispute that arises in connection with this Appointment.

17.2 This Appointment contains the entire understanding between the Parties in relation to its subject matter. There are no express or implied conditions, warranties, promises, representations or obligations, written or oral, in relation to this Appointment other than those as expressly stated in it or necessarily implied by law.

17.3 You acknowledge that you have entered into this Appointment without relying on any representation by the Company.

17.4 No failure, delay, relaxation or indulgence by a party in exercising any power or right conferred upon it under this Appointment will operate as a waiver of that power or right. No single or partial exercise of any power or right precludes any other or future exercise of it, or the exercise of any other power or right under this Appointment

17.5 If any provision of this Appointment is invalid, void or unenforceable, all other provisions which are capable of separate enforcement without regard to an invalid, void or unenforceable provision are and will continue to be of full force and effect in accordance with their terms.

17.6 This Appointment binds and inures for the benefit of the Parties, their respective successors (including, in the case of natural persons, their legal personal representatives) and permitted assigns.

17.7 A notice or other communication will be taken for the purposes of this Appointment, to have been given if:

- Personally delivered, upon delivery;
- mailed, on the expiration of two Business Days after posting;
- sent by facsimile transmission, on the day it is sent (or, if that is not a Business Day, on the next Business Day); or
- sent by e-mail when the recipient sends an acknowledgment of receipt of the e-mail.

17.8 You may not without the prior written consent of The Company assign or encumber all or any part of his rights under this Appointment or attempt or purport to allow another person to assume your obligations under this Appointment.

17.9 On Execution of this Appointment, all previous Appointments between the above two parties stand void.

18. Arbitration

If any dispute arises between you and the Company with respect to the contract of employment, the parties to this Appointment shall first endeavour to co-operate to resolve the dispute or controversy by mutual consultation and Appointment. All disputes, claims arising out of this contract shall be referred to the Arbitration of a sole Arbitrator nominated mutually under the Arbitration and Conciliation Act, 1996 or any statutory modifications made thereof from time to time. The venue for the arbitration shall be in Chennai, India, and the parties shall be subject to the jurisdiction of the Courts in India, which shall have exclusive jurisdiction in the proceedings regarding the enforceability of this contract to arbitrate.

For Vivriti Capital Private Limited

Vineet Sukumar

Director

R. Nethaji

Agreed & Accepted

Employee Name: NETHAJI R